

IN RE BATT-DIENER

Case Number: 25PB-0032846

Tentative Ruling on Petition to Approve Minor's Compromise: This Petition for Approval of Compromise of Claim for Minor seeks approval of settlement of minor Hunter Batt-Diener's claims from an incident on August 31, 2023. The Petition was originally on calendar for hearing on April 21, 2025 but was continued for Petitioner to provide additional information. While Petitioner was appointed as the Guardian Ad Litem on May 9, 2025, nothing was filed addressing the balance of the Court's noted concerns. As noted on April 21, 2025, no information was provided regarding the likelihood that the minor may need future medical care. It is not clear when the photographs attached as Exhibit 8c were taken. Based on the photos, it appears that the minor has significant scarring on his face. In addition to current photographs of the minor and evidence of possible future medical care, the Court requested that Petitioner file a supplemental declaration regarding the financial status of Arthur Spears and whether the offered settlement is the policy limit. Petitioner did not provide any additional information. **An appearance is necessary on today's calendar.**

IN RE: FLANERY

Case Number: 25CV-0207060

Proposed Tentative Ruling on Petition for Change of Name: Petitioner Alyssa Marie Flanery seeks to change her name to Alysha Marie Flanery. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied, with the exception that proof of publication has not been filed. The Court intends to grant the Petition upon presentation of sufficient proof of publication. **An appearance is necessary on today's calendar.**

IN RE: FONSECA

Case Number: 25CV-0207092

Proposed Tentative Ruling on Petition for Change of Name: Petitioner Madison Autumn Fonseca seeks to change her name to Madison Autumn Carlton. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated and the file closed upon the processing of the Decree Changing Name.

GJETLEY VS. SANDOVAL, ET AL.

Case Number: 24CV-0204317

Tentative Ruling on Motion to Compel Response and Further Response to Request for Production: Defendant Gary Sandoval moves to compel Plaintiff Lester Gjetley to provide further responses to discovery propounded to Plaintiff. The Court notes that Defendant's Motion for Summary Judgment was granted on May 27, 2025. Therefore, this motion is moot and should have been withdrawn. The motion is dropped from calendar. **No appearance is necessary on today's calendar.**

HUBBELL VS. DEPARTMENT OF MOTOR VEHICLES

Case Number: 24CV-0206366

Tentative Ruling on Motion to Seal Administrative Record: Petitioner Bruce Grant Hubbell moves to seal the Administrative Record in this matter. Respondent Department of Motor Vehicles opposes the motion.

"Except as provided in Section 214 of the Family Code or any other provision of law, the sittings of every court shall be public." CCP § 124. Unless confidentiality is required by law, court records are presumed to be open to the public. CRC 2.550(c). CRC 2.551 prohibits the court from permitting a record to be filed under seal except by motion or application. The moving party bears the burden to provide "facts sufficient to justify the sealing." CRC 2.551(b)(1).

"The public has a First Amendment right of access to civil litigation documents filed in court and used at trial or submitted as a basis for adjudication. [Citation.] Substantive courtroom proceedings in ordinary civil cases, and

the transcripts and records pertaining to these proceedings, are “presumptively open.” ’ [Citation.]” *Savaglio v. Wal-Mart Stores, Inc.* (2007) 149 Cal. App. 4th 588, 596–597. Prior to granting any sealing motion, the trial court must hold a hearing and “expressly find that (i) there exists an overriding interest supporting closure and/or sealing; (ii) there is a substantial probability that the interest will be prejudiced absent closure and/or sealing; (iii) the proposed closure and/or sealing is narrowly tailored to serve the overriding interest; and (iv) there is no less restrictive means of achieving the overriding interest.” *NBC Subsidiary (KNBC-TV), Inc. v. Superior Court* (1999) 20 Cal. 4th 1178, 1217–1218; CRC 2.550(d).

[A] reasoned decision about sealing or unsealing records cannot be made without identifying and weighing the competing interests and concerns. Such a process is impossible without (1) identifying the specific information claimed to be entitled to such treatment; (2) identifying the nature of the harm threatened by disclosure; and (3) identifying and accounting for countervailing considerations. The burden of presenting information sufficient to accomplish the first two steps is logically placed upon the party seeking the sealing of the documents, who is presumptively in the best position to know what disclosures will harm him and how.

H.B. Fuller Co. v. Doe (2007) 151 Cal. App. 4th 879, 894.

Numerous cases have reiterated the high standard required to obtain a sealing order. A request to close proceedings due to the fact that litigants were celebrities who sought protection from media attention was denied. *NBC Subsidiary (KNBC-TV), Inc. v. Sup.Ct. (Locke)* (1999) 20 Cal. 4th 1178, 1217-18. A sealing order was denied in a case involving online employee reviews critical of the employer, which could subject the employee to repercussions from the employer. *Glassdoor, Inc. v. Sup.Ct. (Machine Zone, Inc.)* (2017) 9 Cal. App. 5th 623, 639.

In the Notice of Motion, Petitioner asserts that the Administrative Record contains “private and/or sensitive records concerning Petitioner.” The Notice goes on to specify “Petitioner’s private ad (*sic*) privileged California driver’s license information, which could negatively impact Petitioner’s identify, employment, financial security and privacy... and it could also subject Petitioner to abuse, harassment and/or ridicule.” The only piece of information specifically discussed in the memorandum is a social security number. The Court notes that Petitioner’s social security number is not found anywhere in the Administrative Record.

Petitioner has not identified specific information within the Administrative Record (other than a social security number or driver’s license information) that Petitioner asserts is entitled to sealing. The specific harm identified by Petitioner is the negative impact to Petitioner’s identity, employment, financial security, and privacy. Petitioner also asserts, without specifying how, that the information could subject Petitioner to abuse, harassment, and/or ridicule. Petitioner did not discuss any countervailing considerations. Respondent points out that the underlying facts of Petitioner’s arrest are contained within the Petition for Writ of Mandate filed by Petitioner on November 1, 2024 and are already public information. Respondent additionally argues that the public has an interest in records concerning intoxicated drivers.

The Court finds that Petitioner has failed to establish that there is an overriding interest that supports sealing of the Administrative Record or any portion thereof. The motion is **DENIED**. The clerk is directed to return the large white envelope conditionally filed under seal by Petitioner. The Court notes that Petitioner submitted a Notice of Lodging of Administrative Record with the Administrative Record attached. As the Administrative Record was lodged by Respondent, the clerk is also directed to return the copy submitted by Petitioner. Petitioner provided a proposed order that will be modified to reflect the Court’s ruling.